

25NNCV06707 25NNCV06707

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C07%2F10%2F2026

Source SHA-256: 49597d694a9615015aa36f3bf829976d88edcacc5eef1ce011de2d3c23ee27da

Case Number: 25NNCV06707 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Defendant City of Temple City's Further
Responses to Plaintiff's Request for Production of Documents, Set One

Hearing Date: 07/10/26

CASE NO./NAME: 25NNCV06707/Tracy Thai, et. al. v.

City of Temple, et. al.

Moving Party: Plaintiff

Tracy Thai

Responding Party: Defendants City of Temple City

Notice: Sufficient

Ruling: DENY

AS MOOT

NOTICE:

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the

hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a wrongful death case. On February 13, 2025, Decedent Hung Chanh Thai was allegedly traveling westbound on Lower Azusa Road in dark and rainy weather when the roadway was suddenly narrowed by a bulb. (Compl., ¶ 26.) When Decedent struck the bulb, Decedent's vehicle was immobilized on train tracks and hit by a train. (Id. at ¶ 28.) Consequently, Decedent died. (Ibid.) Plaintiff Cindy Thai, Decedent's daughter and successor-in-interest to the Estate of Decedent, brings this action on behalf of Plaintiff Tracy Thai ("Thai"), Decedent's wife, and Michael Thai, Decedent's son (collectively, "Plaintiffs"). (Id. at ¶ 1.) Defendants City of Temple ("City"), City of Rosemead, County of Los Angeles, California Department of Transportation, and Does 1 through 50 (collectively, "Defendants") are alleged to have designed, constructed, built, maintained, and controlled the roadway located at Lower Azusa Road. (Id. at ¶ 20.)

On January 23, 2026, Plaintiffs filed a Complaint alleging (1) dangerous condition of public property and (2) negligence.

On April 13, 2026, Plaintiff Thai filed this Motion to Compel Defendant City's Further Responses to Plaintiff's Request for Production of Documents, Set One ("Motion").

On June 26, 2026, Defendant City filed an opposition. City also served Plaintiff with supplemental responses to Thai's Request for Production of Documents. (Hannagan Decl., ¶ 17, Exh. A.)

On July 2, 2026, a reply was filed.

LEGAL

STANDARD

Motions to compel further responses must always be accompanied by a meet-and confer-declaration (per Code Civ. Proc., § 2016.040) demonstrating a “reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Id. at §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), 2033.290, subd. (b).) They must also be accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345, subd. (a).) The separate statement must also be complete in itself; no extrinsic materials may be incorporated by reference. (Id. at rule 3.1345, subd. (c).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1).) It is not necessary for the motion to show that the material sought will be admissible in evidence. “Good cause” may be found to justify discovery where specific facts show that the discovery is necessary for effective trial preparation or to prevent surprise at trial. (See *Associated Brewers Dist. Co. v. Superior Court* (1967) 65 Cal.2d 583, 586-588; see also Code Civ. Proc., §§ 2017.010, 2019.030, subd. (a)(1) [Information is discoverable if it is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence and it is not unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.]; see also *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611-1612 [noting a party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence].)

DISCUSSION

Thai seeks to compel further response from City to Thai’s Requests for Production of Documents. After the filing of this motion, on June 26, 2026, City served supplemental responses to Thai’s Requests for Production of Documents. (Hannagan Decl., ¶ 17, Exh. A.)

The Motion is denied as moot because City

served supplemental response. No sanctions are to be awarded.

CONCLUSION

AND ORDER

Plaintiff Tracy

Thai's Motion to Compel Defendant City of Temple's Further Responses to Plaintiff's Request for Production of Documents, Set One is denied as moot.

Plaintiff Tracy

Thai's request for sanctions is denied.

MOVING PARTY

shall

provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court